

25PSCV03240 25PSCV03240

County: los-angeles

Division: Civil Law and Motion

Department: H

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Case Number: 25PSCV03240 Hearing Date: August 11, 2026 Dept: H

Hsu v. Dinalux

Associates, LP,

Case No. 25PSCV03240

ORDER ON

DEFAULT JUDGMENT APPLICATION

Plaintiff Danny Hsu's Application for

Default Judgment is DENIED without prejudice.

Background

Plaintiff

Danny Hsu

("Plaintiff") alleges

as follows:

Plaintiff

is a tenant of the commercial premises located at 750 Terrado Plaza Suite 48 in

Covina ("subject premises"), pursuant to a written rental agreement with Dinalux Associates, LP ("Defendant"). In January 2022, Plaintiff first provided notice to Defendant that the building roofs had a hole and that ongoing water damage was compromising the subject premises. Defendant failed to perform any repairs at that time or thereafter, despite Plaintiff's notice to Defendant in or around October 2023 that toxic mold was growing on the interior walls and ceilings and numerous times in or around February 2025 that conditions were worsening and adversely affecting his health. While Defendant provided Plaintiff with a temporary office in Suite 52 in February 2025, this space did not have an adequate network/telephone infrastructure and workspace. On April 2, 2025, Plaintiff underwent a Low Dose CT (LDCT) thorax examination, which revealed multiple lung nodules opined by Plaintiff's treating physician to be caused by long-term inhalation of particulate matter and bacteria from the subject premises.

On

September 8, 2025, Plaintiff filed a complaint, asserting causes of action against Defendant and Does 1-20 for: (1) Breach of Contract, (2) Breach of Covenant of Quiet Enjoyment, (3) Conversion, (4) Trespass to Chattels, (5) Constructive Eviction, (6) Intentional Infliction of Emotional Distress, (7) Negligence, and (8) Declaratory and Injunctive Relief

On

December 2, 2025, Defendant's default was entered.

An

Order to Show Cause Re: Default Judgment is set for August 11, 2026.

Discussion

Plaintiff's

Application for Default Judgment is denied without prejudice. The

following defects are noted:

1. Plaintiff

identifies the [d]emand of complaint" in Paragraph 2 of the Request for Court

Judgment (Judicial Council Form CIV-100) as \$146,862.82 (i.e., including \$100,862.82 in special damages and \$45,000.00 in

general damages). Plaintiff,

in this instant default prove-up application, identifies and calculates his

damages as follows:

"1. Inventory Loss: \$9,361.00

2. Current Medical Expenses:

\$4,147.75

3. Estimated 10 Year Ongoing

Medical Expenses: \$40,000

4. Mover's Cost (Emergency

Relocation): \$360.00

5. Mold Inspection Fees: \$600.00

6. Business Interruption:

\$46,394.27

7. Emotional Distress: \$45,000.00

8. Total Damages: \$145,863.02"

(Statement

of the Case[, etc.], 4:6-18).

"The relief

granted to the plaintiff, if there is no answer, cannot exceed that demanded in

the complaint, in the statement required by Section 425.11, or in the statement

provided for by Section 425.115 . . ." (Code Civ. Proc., § 580, subd. (a); *Airs*

Aromatics, LLC v. CBL Data Recovery Technologies, Inc. (2018) 23 Cal.App.5th

1013, 1018 ["A default judgment greater than the amount specifically demanded

in the complaint is void as beyond the court's jurisdiction"]; *Greenup v.*

Rodman (1986) 42 Cal.3d 822, 824 ["[I]n all default judgments the demand

sets a ceiling on recovery"].)

Plaintiff's

complaint makes reference to only the following monetary amounts (aside from

references to the \$35,000.00 minimum jurisdictional threshold): \$360.00 (i.e.,

for debris removal; Complaint, ¶ 18), \$4,374.00 (i.e., for contaminated and destroyed inventory; Id.), \$1,263.69 (i.e., for Plaintiff's April 2, 2025 thorax examination; Id., ¶ 21), \$600.00 (i.e., for professional mold inspection fees; Id., ¶ 48), \$4,000.00 (i.e., for medical treatment; Id., ¶ 77) and \$4,700.44 (i.e., for restitution of wrongfully collected rent; Prayer, ¶ 2). These amounts total \$15,298.13. Plaintiff makes reference to business interruption losses, but identifies this amount as "TBD." (Complaint, Prayer, ¶ 1). Further, although Plaintiff's complaint seeks damages for personal injuries in addition to punitive damages, there is no indication that Plaintiff has served Defendant with a statement required by Section 425.11, or a statement provided for by Section 425.115.

2. Paragraphs

6 and 7 of the Prayer in Plaintiff's complaint seek declaratory and injunctive relief, respectively. The proposed judgment makes reference to monetary damages only. It is unclear to the Court whether or not Plaintiff has abandoned his request for such relief. The Court requests clarification in this regard.

3.

Plaintiff has failed to dismiss Does

1-20.

4. None of the exhibits have been

authenticated.

5.

Plaintiff has not provided the Court

with any of the underlying lease documents; while these documents are

purportedly attached to the complaint, the complaint is not verified.

6.

Plaintiff's declaration is scant,

consisting of ten paragraphs each comprised of one sentence. Plaintiff's

declaration is lacking in factual detail.

Accordingly,

the application is denied without prejudice, and Plaintiff is directed

to submit a revised and complete default judgment application that addresses

the aforementioned issues. Any

subsequent default prove-up application must be full and complete in and of

itself. The Court will not entertain piecemeal submissions.